

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 02, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**RESA MACKEY v. CITY OF VALLEJO
Case No. CL25-01569**

Demurrer to Complaint

TENTATIVE RULING:

CITY OF VALLEJO (Defendant or "CITY") demurs to the complaint filed by Plaintiff RESA MACKEY (Plaintiff or "MACKEY").

CITY's unopposed demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. Matters subject to judicial notice may support a demurrer. (Code Civ. Proc., § 430.30, subd. (a).) The court takes judicial notice of the existence of Plaintiff's government claim dated May 30 and June 4, 2024 and the claim

rejection dated July 9, 2024. (Evid. Code, § 452(c).); *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) See attachments to Complaint and Request for Judicial Notice (“RJN”) Exh. A. The court may take judicial notice of the contents of its own file.

Government Claims Act. Unless provided by statute, a public entity is not liable for an injury. (Gov. Code, § 815(a).) Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions. (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.)

Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages to personal property against public entities must be presented to the entity within six months of accrual of the injury. (Govt. Code, 911.2(a); *A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) Thereafter, suit must be filed within six months of the public entity’s notice that the claim was rejected (Govt. Code § 945.6) or within two years from accrual of the cause of action if the public entity fails to send proper written notice of the rejection. (Govt. Code, § 945.6(a)(2).) When the public entity provides notice, the clock begins to run on the date notice of denial is personally delivered or deposited in the mail. (Govt. Code, § 945.6.)

The complaint in this action was not filed until February 19, 2025. Six months from July 9, 2024 was January 9, 2025. Plaintiff’s suit filed February 19, 2025 is time-barred.

Although the complaint alleges that Plaintiff is excused from complying with the claims act because “California allows 1 year from date of incident to sue responsible parties” that statement does not correctly reflect applicable law.

Discretionary Immunity Because the court finds Plaintiff’s suit is time-barred it does not reach Defendant’s additional argument on demurrer that CITY is immune from liability arising from a police pursuit. (See e.g. Veh. Code, § 17004.7; *Brumer v. City of Los Angeles* (1994) 24 Cal.App.4th 983, 987.)

Conclusion Defendant’s demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. This suit shall be dismissed. CITY to prepare an order after hearing and judgment and to submit directly to court. The case management conference and any future scheduled dates are vacated.

IN THE MATTER OF CYNTHIA J CAMPBELL
Case No. CL25-10837

Petition for Court Approval of a Transfer of Structured Settlement Payment Rights

TENTATIVE RULING:

The petition is DENIED.